



2026:AHC:147659-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 25099 of 2026

Vinod Kumar Sahu

.....Petitioner(s)

Versus

State Of U.P. And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Ram Kishor Gupta
Counsel for Respondent(s)	:	C.S.C., Gaurav Singh

Court No. - 1

HON'BLE AJIT KUMAR, J.

HON'BLE GARIMA PRASHAD, J.

1. Heard learned counsel for the petitioner and Sri Gaurav Singh, learned counsel appearing for the respondent- Electricity Department.

2. By means of the present petition filed under Article 226 of the Constitution of India, the petitioner has prayed for the following relief:

"i) Issue a writ, order or direction in the nature of mandamus commanding the respondent no.2 to restore domestic electricity connection of the petitioner within stipulated period as fixed by this Hon'ble Court.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondent no.2 to provide inspection report to the petitioner which is provided under para 8.1(vi) of the UP Electricity Supply Code, 2005."

3. Sri Gaurav Singh, learned counsel appearing for the respondent-department, submits that it is a case of theft of electricity, as the petitioner was using electricity unauthorisedly, for which a provisional assessment has been made.

4. Sri Gaurav Singh has obtained written instructions, a copy whereof has also been supplied to learned counsel for the petitioner. The instructions do carry the inspection report.

5. Accordingly, the present writ petition is **disposed of** with a direction to

the petitioner to submit a reply to the provisional assessment notice within a period of two weeks from today. Thereafter, the competent authority shall pass a final assessment order, strictly in accordance with law, within a period of two months, after affording an opportunity of hearing to the petitioner.

6. So far as the prayer for restoration of electricity supply is concerned, it is provided that restoration of the electricity connection shall depend upon the final assessment order to be passed by the competent authority and compliance thereof by the petitioner.

(Garima Prashad,J.) (Ajit Kumar,J.)

July 20, 2026
Prachi